# Policy on AI and Technology Use in 1st Year JD Courses

## Philippine Legal Education in the Time of Artificial Intelligence I: Recommitting to the Fundamentals of Legal Analysis

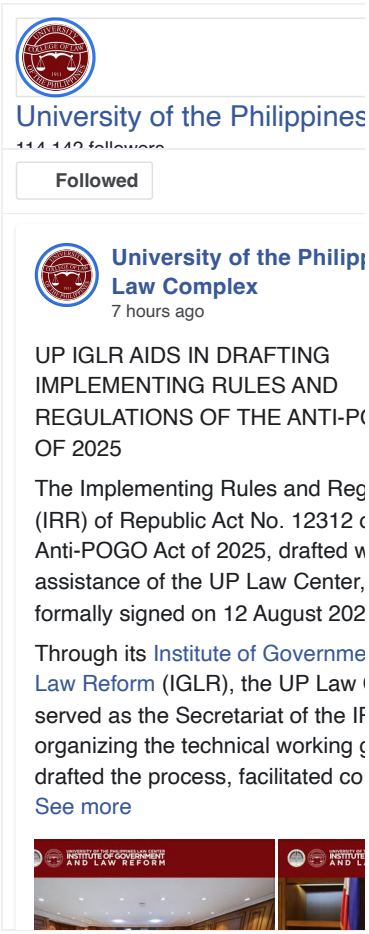
Adopted by the Regular Faculty of the University of the Philippines College of Law

04 August 2026

Since the mass availability of generative artificial intelligence (AI), Philippine law schools have grappled with how to prepare future lawyers for a world where AI technologies are widely used.[1] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftn1) AI's potential to supercharge legal research and disrupt service monopolies has been celebrated by both scholars[2] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftn2) and the courts.[3] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftn3) Law schools have thus been urged to incorporate "AI-integrated teaching … across the entire curriculum including both doctrinal courses and skills training subjects" and to prepare students for "co-intelligence."[4] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftn4) At the same time, concerns have emerged with the use of AI for cognitive offloading and its detrimental effects on critical thinking.[5] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftn5) Our disciplinary docket suggests a reflexive resort to it for class, examinations, and writing requirements even when expressly prohibited. The lack of academic consensus has led our sector to vacillate between keeping AI out of the law school and embracing it totally, even as questions persist on its efficiency, effectiveness, and ethical use, not least because of its environmental impact.

Beyond the literature, we have nevertheless closely observed the effect of regular AI use by our students. We have noted a considerable decline in the quality of reasoning and argumentation coinciding with the regular use of AI by students for case briefing, answering simple queries during class, and research. Employer feedback has returned similar observations on our newest graduates, which confirm our fears that many of our students have not just become AI-literate but AI-dependent.

We have therefore found neither complete isolation nor complete acceptance satisfactory. We acknowledge the pervasiveness of AI technologies and our responsibility to prepare our students for their ethical use. However, we believe that these tools at best supplement strong




LATEST NEWS



(https://law.upd.edu.ph/35197-2/) (https://law.upd.edu.ph/35197-2/)
July 15, 2026


(https://law.upd.edu.ph/legal-method-essentials-5th-edition-by-professor-dante-b-gatmayta
Legal Method Essentials 5th Edition by Professor Dante B. Gatmaytan now available! (https://law.upd.edu.ph/legal-method-essentials-5th-edition-by-professor-dante-b-gatmaytan-now-available/)
July 14, 2026

analytical skills. Moreover, we are gravely concerned that their use by lawyers without a strong grasp of legal fundamentals risks not only malpractice but the dehumanization and misapplication of law and its divorce from the social condition.

In order to be prepared for a profession where AI is increasingly used, we must train students to master skills that the technology cannot replace: deriving legal arguments from language and social context, finding or creating law in or from its interstices, and transposing these to actual cases and situations in the persuasive, ethical, and humane manner that underlies the law's legitimacy. Even as generative AI seeks to present information in an authoritative and oversimplified manner, we seek to mold students who can navigate the conflicts and confusions within law and legal language. While generative AI often panders to its users, we aim to train leaders who can accept criticism and professionals with a healthy sense of distrust. Whereas the task-oriented logic of generative AI presents immediate responses for any prompt, we envision students who can be comfortable in uncertainty and patient with the arduousness and rigors of serious inquiry.

In our resolve to develop an "AI-resilient" pedagogy and assessment,[6] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftn6) and mindful of measures already announced by our counterparts abroad,[7] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftn7) the College shall implement the following at the first-year level of the Juris Doctor (JD) program beginning A.Y. 2026-2027.

A. To the greatest extent possible, first-year core subjects (i.e., those traditionally tested in the Philippine Bar Exam) shall be taught offline. This means that:

1. Instruction shall return fully onsite for core subjects, except in exigent circumstances, make-up classes, or when excepted by the Dean.
2. For core subjects that are taught onsite, the use of digital or electronic devices (e.g., phones, laptops, tablets, smart watches, smart glasses, recorders) shall be prohibited for any purpose including notetaking, except when allowed by the instructor as necessary for a class activity (e.g., presentation) or in exigent circumstances, with the instructor's prior permission.

Students understand that faculty may impose academic penalties for use during class, without prejudice to the initiation of appropriate disciplinary action, *infra*.

3. Major assessments (e., midterm and final examinations) for core subjects shall be administered individually (cf. via group work) and conducted offline and onsite.

n-now-available/)


(https://law.upd.edu.ph/up-glpp-continues-its-legislative-work-toward-the-passage-of-the-law-on-absolute-divorce-in-the-philippines/)
UP GLPP continues its legislative work toward the passage of the law on absolute divorce in the Philippines (https://law.upd.edu.ph/up-glpp-continues-its-legislative-work-toward-the-passage-of-the-law-on-absolute-divorce-in-the-philippines/)
July 13, 2026


(https://law.upd.edu.ph/plj-faculty-examination-committee-announces-results-of-latest-qualifiers-in-legal-writing-and-editing-exams/)
PLJ Faculty Examination Committee announces results of latest qualifiers in legal writing and editing exams (https://law.upd.edu.ph/plj-faculty-examination-committee-announces-results-of-latest-qualifiers-in-legal-writing-and-editing-exams/)
July 4, 2026


(https://law.upd.edu.ph/up-ihr-continues-to-call-for-public-health-and-rights-based-
UP IHR Continues to Call for Public Health and Rights-Based Approach (https://law.upd.edu.ph/up-ihr-continues-to-call-for-public-health-and-rights-based-approach/)
July 1, 2026

The foregoing shall not be read as requiring or encouraging "clean desk" recitations or prohibiting or discouraging open-book exams, both of which shall be left to the discretion of faculty.

B. For writing assignments (e.g., academic papers, legal memos), especially those in the research and method courses, students shall be prohibited from: (a) relying on generative AI for any part of the research and writing process, from conceptualization to writing and finalization, including editing and grammar checks; and (b) research or law databases that are principally reliant on AI.

For this purpose, the Legal Research Cluster, in consultation with the Faculty Colloquium on Technology, Legal Education and Law Practice (the **"Colloquium"**), shall prepare a list of databases that must be introduced in these courses.

Faculty may introduce principally AI-based research technologies and tools to their classes only if consistent with the intent of this policy, with the endorsement of the Legal Research Cluster, and after students are taught and satisfactorily assessed on research fundamentals. Faculty who will permit such limited AI use have an ethical duty to actively supervise students. They must likewise require students to submit detailed disclosures explaining the scope and extent of their use of the specified technology or software. Such disclosures must appear in the output itself and at all relevant stages (e.g., drafts).

In any event, faculty are encouraged to require honor statements and undertakings from students in order to enforce this policy.

C. For core subjects, the mere possession within one's person of digital or electronic devices in onsite courses for assessments shall be considered as an offense against academic integrity and shall subject the erring student to formal disciplinary action.

The Colloquium shall closely monitor compliance with and the immediate effects of the foregoing policy, with a view to ensuring integration with an equivalent policy for higher-year subjects, to be released in due course.

– o0o –

[1] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftnref1) *See* Paolo S. Tamase, *The Long Shadow of Vinuya in the Time of Artificial Intelligence: Reflections on Ethical Issues in Legal Research*, Essay, 96 Phil. L.J. 850, 851–53 (2023).

[2] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftnref2) Stephanos Bibas, *Lawyers' Monopoly and the Promises of AI Procedure, Fairness, and Access to Justice: Perspectives on Reform*, 134 Yale L.J. F. 920

approach/
)

(2024).

[3] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftnref3) *Chief Justice Gesmundo: Judiciary E-Library to Use AI Technology to Improve Legal Research*, Supreme Court of the Philippines (Aug. 27, 2023), https://sc.judiciary.gov.ph/chief-justice-gesmundo-judiciary-e-library-to-use-ai-technology-to-improve-legal-research/ (last visited July 31, 2026).

[4] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftnref4) Ying Chen & Benedict Sheehy, *Educating Future Lawyers for Co-Intelligence: A Proposal for a Third Pillar in Legal Education Based on a Comparative Study of the U.S. and Australian Approaches*, 43 Wis. Int'l L.J. 245, 297 (2025).

[5] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftnref5) Michael Gerlich, *AI Tools in Society: Impacts on Cognitive Offloading and the Future of Critical Thinking*, 15 Societies 6 (2025).

[6] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftnref6) *Rethinking Legal Education in the AI Era*, University of Chicago Law School (July 6, 2026), https://www.law.uchicago.edu/news/ai-strategy-statement (last visited July 31, 2026).

[7] (applewebdata://0FCC4295-D295-4100-94FF-FDE8AF4DC9E2#_ftnref7) *See id.*; *Artificial Intelligence Policy*, UC Berkeley Law, https://www.law.berkeley.edu/ academics/registrar/academic-rules/artificial-intelligence-policy/ (last visited July 31, 2026).

News (https://law.upd.edu.ph/category/news/) - August 5, 2026 -
August 5, 2026


**UP DILIMAN**

Malcolm Hall, Osmeña Avenue
UP Diliman, Quezon City 1101 Philippines
(+632) 8 920 5514
ocs_law.upd@up.edu.ph (The College Secretary)
llm.upd@up.edu.ph (for LL.M.

**UP BGC**

UP Bonifacio Global City (UP BGC)
32nd / 38th Street, Taguig City 1634 Philippines
(+632) 8 818 7242
llm.upd@up.edu.ph (for LL.M. inquiries only)

**LAW CENTER**

UP Law Center, Bocobo Hall, Magsaysay Avenue
UP Diliman, Quezon City 1101 Philippines
(+632) 8 920 5514 / (+632) 8 925 5855
ipd_law.upd@up.edu.ph (IPD)
oad_law.upd@up.edu.ph

inquiries only)

(Associate Dean)

## SITE MAP

About the UP College of Law (/about-up-law/)
Programs (/#programs)
Juris Doctor (J.D.) Program (/jd-program/)
Master of Laws (LL.M.) Program (/llm)
Student Experience, Activities & Organizations (/student-experience)
Faculty Profile (/faculty)
Alumni Relations Office (/alumni)
Law Center & Support Services (/#center)
Mandatory Continuing Legal Education (MCLE) (/mcle)
Careers & Job Opportunities (/careers/)

## QUICK LINKS

UP System Website (https://www.up.edu.ph/)
UP Diliman Website (https://upd.edu.ph)
UP Bonifacio Global City (BGC) (https://goo.gl/maps/iRKrK6Z1EddLLVxEA)
Foreign Students Admission (https://upd.edu.ph/admissions/foreign-admission/)
Student Accommodation (UP Diliman Campus) (https://upd.edu.ph/students/student-accommodation/)
UP Diliman Campus Map (https://upd.edu.ph/wp-content/uploads/2018/06/UPD-Map-2018.pdf)
Acceptable Use Policy for IT Resources (https://www.up.edu.ph/index.php/approved-acceptable-use-policy-for-information-technology-it-resources-of-the-up-system)
Freedom of Information (FOI) Policy/Requests (https://www.up.edu.ph/index.php/university-of-the-philippines-up-privacy-notice-foi/)
Data Privacy Information and Notices (UP System) (https://privacy.up.edu.ph/)

## RELATED LINKS

News and Announcements (/news)
Law Aptitude Examination (LAE) (http://lae.law.upd.edu.ph)
Clinical Legal Education (CLE) (/cle)
Mandatory Continuing Legal Education (MCLE) (https://llm.law.upd.edu.ph/mcle/)
Office of Legal Aid (OLA) (http://law.upd.edu.ph/office-of-legal-aid/)
Office of the National Administrative Register (ONAR) (http://law.upd.edu.ph/onar/)
Publications / Book Room (http://law.upd.edu.ph/publications/)
UP Law Library (http://lawlib.upd.edu.ph/)
iLib - Integrated Library System (UP System) (https://www.up.edu.ph/index.php/ilib-integrated-library-system/)
UP Scholarships and Grants (https://upd.edu.ph/students/scholarships-and-grants/)

Civil Service Commission (CSC) (http://www.csc.gov.ph/)

UPLC Citizen's Charter (https://law.upd.edu.ph/wp-content/uploads/2022/10/CL-ARTA.pdf)

## CURRENT PARTNERS IN EDUCATION

(HTTPS://WWW.UMA.ES/FACULTAD-DE-DERECHO/)

(HTTP://WWW.LAW.RUC.EDU.CN/ENG/)

(HTTPS://WWW.CANBERRA.EDU.AU/)

(HTTPS://CALSADAPROJECT.EU/)

## LEGAL EDUCATION & RESEARCH

(HTTPS://LAW.UPD.EDU.PH/#CENTER)

## COPYRIGHT © 2020-2024 UP COLLEGE OF LAW

Website development and support led by
the Web Team of the Office of the Dean and
the Information & Publications Division (IPD) (Https://Law.Upd.Edu.Ph/Law-Center-Support-Services/)